

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2988

By: Dobrinski of the House

and

7 **Kern** of the Senate

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11 COMMITTEE SUBSTITUTE

12 [environment - natural resources - Terry Peach North
13 Canadian Watershed Restoration Act - pilot program
14 - definitions - program - North Canadian Watershed
15 Restoration Revolving Fund - purpose - effective
16 date]

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20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. AMENDATORY Section 1, Chapter 372, O.S.L.
22 2023 (27A O.S. Supp. 2025, Section 3-8-101), is amended to read as
23 follows:
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1 Section 3-8-101. This act shall be known and may be cited as
2 the "Terry Peach ~~North Canadian Watershed~~ Water Restoration Act".

3 SECTION 2. AMENDATORY Section 2, Chapter 372, O.S.L.
4 2023 (27A O.S. Supp. 2025, Section 3-8-102), is amended to read as
5 follows:

6 Section 3-8-102. A. As used in the Terry Peach ~~North Canadian~~
7 ~~Watershed~~ Water Restoration Act:

8 1. "Commission" means the Oklahoma Conservation Commission;

9 2. "Harmful woody species" means a tree or shrub species that
10 is rapidly encroaching into adjoining lands and is likely to cause
11 harm to the environment or economy. Harmful woody species include,
12 but are not limited to, *Juniperus virginiana* (Eastern Redcedar),
13 *Juniperus scopulorum* (Rocky Mountain juniper), *Juniperus monosperma*
14 (oneseed juniper) ~~and~~, *Tamarix ramosissima* (salt cedar), *Juniperus*
15 *pinchotii* (Redberry juniper), *Juniper ashei* (ashe juniper), and
16 *Prosopis glandulosa* (honey mesquite); and

17 3. "~~North Canadian Watershed~~" means ~~the~~ an area of land in
18 Oklahoma that drains or sheds water into ~~the North Canadian River~~ a
19 waterway or water basin.

20 B. There is hereby created a ~~pilot~~ statewide program to remove
21 or eradicate harmful woody species in ~~the North Canadian Watershed~~
22 watersheds to be administered by the Oklahoma Conservation
23 Commission. To accomplish the goals listed in this section, the
24 Commission is authorized to use the funds available in the ~~North~~

1 ~~Canadian Watershed~~ Water Restoration Revolving Fund established in
2 ~~Section 3 of this act~~ Section 3-8-103 of this title. The purpose of
3 the program is to manage and eradicate, where possible, harmful
4 woody species that damage grazing lands, create significant wildfire
5 risk, reduce wildlife habitat and reduce water flow into ~~the North~~
6 ~~Canadian River~~ waterways and water basins.

7 C. In administering the ~~pilot~~ program, the Commission shall:

8 1. Cooperate with landowners, state agencies, and other
9 political subdivisions for removal of harmful woody species;

10 2. Measure the density of harmful woody species and estimate
11 water used by those species;

12 3. Create a study using a parallel watershed with no control of
13 harmful woody species;

14 4. Utilize available funds to cost-share with landowners for
15 expenses incurred in the eradication of harmful woody species by
16 prescribed burn, biological controls, mechanical removal, or
17 herbicide applications;

18 5. Develop grant programs with conservation districts, rural
19 fire departments, and prescribe burn associations for resources
20 needed for prescribed burns, mechanical removal, biological control,
21 or herbicide applications on harmful woody species;

22 6. Bring attention to the problems posed by harmful woody
23 species to create awareness, demonstrate value to all stakeholders,
24 and encourage landowners to participate in the program; and

1 7. Have at least two active project areas in the program, one
2 above the Canton Lake dam and one below.

3 D. The Commission is authorized to promulgate any rules and
4 procedures to effectuate the provisions of this section.

5 SECTION 3. AMENDATORY Section 3, Chapter 372, O.S.L.
6 2023 (27A O.S. Supp. 2025, Section 3-8-103), is amended to read as
7 follows:

8 Section 3-8-103. There is hereby created in the State Treasury
9 a revolving fund for the Oklahoma Conservation Commission to be
10 designated the "~~North Canadian Watershed~~ Water Restoration Revolving
11 Fund". The fund shall be a continuing fund, not subject to fiscal
12 year limitations, and shall consist of all monies received by the
13 Conservation Commission from appropriations, federal grants or
14 funds, municipal contributions, private contributions, and any other
15 sources, including interest earned from the income in the fund, that
16 are designated for deposit to such fund or designated for duties
17 associated with harmful woody species removal from ~~the North~~
18 ~~Canadian Watershed~~ watersheds throughout the state. All monies
19 accruing to the credit of said fund are hereby appropriated and may
20 be budgeted and expended by the Conservation Commission to perform
21 the duties imposed on the Commission by law. Expenditures from said
22 fund shall be made upon warrants issued by the State Treasurer
23 against claims filed as prescribed by law with the Director of the
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1 Office of Management and Enterprise Services for approval and
2 payment.

3 SECTION 4. This act shall become effective November 1, 2026.
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5 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
6 03/05/2026 - DO PASS, As Amended and Coauthored.
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